

Serious Fraud Investigation Office Vs Adarsh Build Estate Ltd. & 186 others

-1-

Present: Sh. Hari Kishan, Senior Prosecutor for SFIO along with
Sh. Lokender Singh Raghav, Standing Government Counsel for
the complainant -SFIO and Sh. Vishal Singh and Ms. Kajal
Soni, Legal Consultants

Accused Nos. **1** to **70** companies represented through accused
No.114 Rahul Virendra Modi who is in custody

Accused Nos. **71** to **78** companies, represented through
accused Sidharth Chauhan (No. **135**) who is on interim
bail.

Accused No.**79** company, represented through accused
Vivek Hari Vyasi (No. **115**) (sought exemption today)who
is on interim bail.

Accused Nos. **80** company, represented through accused
Naveen Kumar (No. **139**).

Accused Nos. **81** and **82** companies, represented through
accused Surender Singh(No. 140) who is on interim bail.

None for accused No.83 company

Accused Nos. **84** company, represented through accused
Abhya K. Shah(No.127), represented by Sh.Nitin Desodia,
Advocate

Accused Nos. **85** company, represented through accused
Jainam Rathod (No.130).

Accused Nos. **86**, **87** and **88** companies, represented
through accused Ravi Tak (No. **166**)(sought exemption
today)

Accused No. **89** company, represented through accused
Raj Kumar Bohra (No. 171).

Accused Nos. **90** to **93** companies, represented through
accused Vivek Hari Vyasi (No.115)(sought exemption
today) who is on interim bail

Accused Nos. **94** to **97** companies, represented through
Shri Rahul, AR, in person

Accused Nos. **98** company, represented through Shri
Naresh Kumar, AR, in person

Serious Fraud Investigation Office Vs Adarsh Build Estate Ltd. & 186 others

-2-

Accused Nos. **99** and **100** companies, represented through accused Raj Kumar Modi (No. **176**) who is on interim bail

None for accused No.**101** Alba Ploymers Ltd.

Accused No. **102** company, represented through Shri Deepak, AR, in person

Accused No. **103** company, represented through Shri Dharmender, AR, in person

Accused No. **104** company, represented through Shri Vicky, AR, in person

None for accused No. **105** company

None for accused No. **106** company

Accused No. **107** company, represented through Shri Fateh Singh, AR, in person

Accused No. **108** company, represented through Shri Jinsan, AR, in person

Accused No. **109** company, represented through Shri Vikas Paul, AR, in person

Accused Nos. **110** company, represented through Shri Raju Yadav, AR in person

Accused No. **111** company, represented through Shri Ritik Sharma, AR, in person

Accused No. **112** company, represented through Shri Devender Kumar, AR (sought exemption today)

Accused Vivek Harivyasi (No. **115**) on interim bail (sought exemption today), represented by Sh Vivek Tanwar, Advocate

Accused No.117 Priyanka Modi(sought exemption today), represented by Sh Manl Mittra, Advocate

Accused No. **113**/Mukesh Modi, No. **114**/Rahul Virendra Modi and No.177/Rajiv Kumar Rana in custody, but not produced by the concerned jail authorities, as they are stated to be on police remand in some other case(s)

Accused No.143/Sudhir Punia in custody, produced through VC from Bhondsi Jail

Accused No. **120**/Vibhav Lodha, No. **123**/Rohit Modi, No. **125**/Rajeshwar Singh, No.126/Bharat Modi, No. **131**/Ishwar Singh Sindal, No.134/Vivek Purohit, No. **142**/Bharat Das Vaishnav, who are on bail in this case, but they are stated to be on police remand in some other case(s)

Accused Surender Singh (No. **140**), Vijay Shukla (No. **149**), Raj Kumar Modi (No. **176**), on interim bail.

-3-

Accused Joydeep Das Gupta (No.144), Lovekush Sharma (No.145), Avanish Kumar Tyagi (No.148) and Poonam Madan(No. 151) on bail, but granted personal exemption(s) till further orders vide order dated 22.11.2019, represented through Shri Vishal Gupta, Advocate.

Accused Leena Harivvayi (No. 146) on bail, exempted till further orders vide order dated 03.05.2024

Accused Bharat Kumar Mardia (No. 154) on bail, exempted permanently, represented by Sh. Peeyush Jain, Advocate.

Accused Praveen Maheshwari (No.156) and Rajeev Maheshwari (No.157) on bail, but exempted from personal appearance till further order(s) vide order 31.01.2020, represented through Shri Piyush Jain, Advocate

Accused Rajeev Verma (No.167), Sushil Maloo (No.168) and Rajendra Singh Bhandari (No.169) on bail, but granted permanent exemption vide order(s) dated 04.09.2019.

Accused Paramvir Singh Sangwan(No.174) on bail, but granted personal exemption till further order vide order dated 19.02.2021, represented by Shri Dinesh Kumar, Advocate.

Accused Ichchhita Dungarwal (No.180) and Neha Kataria (No.181) permanently exempted till further orders vod 22.11.2019, represented by Sh Nitin Desodya, Advocate

Accused Paras Bolia (No.121)on bail (sought exemption today), represented by Sh Nitin Saini, Advocate

Accused Jainam Rathod (No.130) on bail(sought exemption today)

Accused Prakash Chandra Purohit(No.133) on bail (sought exemption today),represented by Shri Vivek Tanwar, Advocate

Accused Akshat Singh (No. 136), on bail (sought exemption today),represented by Shri Prashant Yadav, Advocate

Serious Fraud Investigation Office Vs Adarsh Build Estate Ltd. & 186 others

-4-

Accused Nazima Khan (No. 152) on bail(sought exemption today), represented by Shri Arun Sharma, Advocate

Accused Shiv Raj Sharma (No.160) on bail (sought exemption today),represented by Shri Apoorv Yadav, Advocate

Accused Aditya Sarda (No. **141**) on bail(sought exemption today), represented by Shri Karan Kumar Gogna, Advocate

Accused Megha Chauhan No.(No. 163), accused Indu Tak (No. 164), accused Ravi Tak (No. 166) and accused Saurabh Tak (No. 172) on bail(sought exemption today), represented by Sh Neeraj Dev Gaur, Advocate

Accused Nitin Rathore(No. 116), Jinender Vyas(No. 118), Abhay K. Shah (No. **127**), Manish Chaudhary(No.128), Deepak Shrimali(N0.129), Gurbir Singh Sandhu(No.138), Naveen Kumar(No.139), Vimal Sanwarmal Sharma(No.147), Shabir Khan (**No. 153**), Naveen Choudhary(No. 162), Shyam Bihari Gupta (No.165), Sudhir Mehta(No. 170), Raj Kumar Bohra (No.171), Mahesh Dutt Sharma(No.178), Mahesh Kumar Tak (No. **187**), on bail, in person.

Accused No.173 Peeyush Aggarwal on bail, represented by Sh Prashant Yadav, Advocate

Accused Vinay Kumpawat (No. **119**) already declared proclaimed person vod **27.07.2022** and accused Shinder Pal Singh (No. **137**) already declared proclaimed person vod 03.05.2024

*Proceedings qua accused **Mahendra Kumar Tak (155)** and **Vijay Jindal (175)** stood abated vide order dated 25.03.2022.*

Death report of accused No.122/Virender Modi has not been filed. The prosecuting agency is directed to file death report of accused No.122/Virender Modi on or before **13.11.2024**, after obtaining the same through SHO concerned.

Accused No. **113**/Mukesh Modi, No. **114**/Rahul Virendra Modi and No.**177**/Rajiv Kumar Rana, who are in custody in this case, but not produced by the concerned jail authorities, as they are stated to be on police remand in some other case(s). Accordingly production warrants of these accused be issued for 13.11.2024 to be produced before this court through VC.

Accused No.**143**/Sudhir Punia in custody, produced through VC from Bhondsi Jail and he be produced through VC on the adjourned date.

Accused No. **120**/Vibhav Lodha, No. **123**/Rohit Modi, No. **125**/Rajeshwar Singh, No.**126**/Bharat Modi, No. **131**/Ishwar Singh Sindal, No.**134**/Vivek Purohit, No. **142**/Bharat Das Vaishnav, who are on bail in this case, but they are stated to be on police remand in some other case(s). So production warrants of these accused be also issued for 13.11.2024 to be produced before this court through VC and in case any of the accused comes out on bail, then such accused is directed to come present in person on the adjourned date.

Separate applications seeking exemption from personal appearance(s) filed on behalf of accused No.115 Vivek Harivyasi, accused No.117 Smt. Priyanka Modi, accused No.121 Paras Bolia, accused No.130 Jainam Rathod, accused No.133 Prakash Chander Purohit, accused No.136 Akshat, accused No.141 Aditya Sarda, accused No.152 Nazima Khan, accused No.160 Shiv Raj Sharma, accused No.163 Megha Chauhan, accused No.164 Indu Tak, accused No.166 Ravi Tak and accused No.172 Saurabh Tak. The applications are supported by respective affidavit(s). For the reasons mentioned in the applications, the same stand allowed for today only. All these accused are directed to come present in person on the adjourned date except in emergent situation(s).

AR Devender Kumar, representing accused company i.e. accused No.112 has also sought exemption. For the reasons mentioned in the application, the said application stands allowed for today only.

Two separate applications, seeking permanent exemption from appearance(s) before the court, moved on behalf of accused no. 117/Priyanka Modi and accused No.133 Prakash Chandra Purohit, are stated to be pending adjudication. Therefore, arguments on these applications shall be heard on the adjourned date and in the meanwhile, reply, if not filed so far, can be filed by the complainant/SFIO on or before the adjourned date.

No reply to the application moved under Section 88 Cr.P.C/Section 91 BNSS, 2023 on behalf of accused No.124/Neha Ghemawat and accused No.132/Meenakshi Modi, has been filed by the complainant/SFIO. Reply, if any, be filed on or before the the adjourned date. On the last date of hearing, the afore-said applications were moved, but today there is no representation on behalf of these accused. On the last date of hearing, it was also directed that in case there is any restraint order passed by any Court of law qua the presence of these accused before this Court, then the accused/their counsel are under obligation to bring on record certified copies of such order(s) on the adjourned date, failing which both the accused shall have to appear in person before the court, however neither any order has been brought on record noe anyone has appeared on behalf of these accused. Be that as it may, in the interest of justice, one last ooprtnuity is granted to these accused to bring on record any order passed in their favour, failing which it shall be assumed that these accused are deliberately avoiding presence before this court and further action as per law shall be initiated.

On the last date of hearing, accused Siddharth Chauhan (No. 135) was directed to bring on record certified copies of order(s) passed in his favour by Hon'ble High Court, as it was apprised by the Senior Prosecutor that said accused had earlier approached Hon'ble High Court qua initiation of PO proceedings against him, wherein some interim order was passed, however latest status of the same was not available, however today none has appeared on behalf of said accused, but still as a matter of

Serious Fraud Investigation Office Vs Adarsh Build Estate Ltd. & 186 others

-7-

abundant caution and in the interest of justice, one last opportunity is granted to said accused to bring on record any order passed in his favour, failing which it shall be presumed that said accused is deliberately avoiding presence before this Court and further action as per law shall be initiated. In the meanwhile, learned Senior Prosecutor is also directed to apprise the Court about status of the petition moved by said accused before the Hon'ble High Court, so that there is no violation of any order passed by Hon'ble High Court.

Today, learned Senior Prosecutor representing complainant/SFIO, apprised the Court that accused Ajit Singh Rathore (No. 150), Ramlal Arya (No. 158), Hemant Kumar Jain (No. 159), Parveen Kumar (No. 161), Damyanti Bhandari (No. 179), accused Nimesh Kumar Soni (No.182), accused Rituraj Singh (No.183), accused Dushyant Singh Rathore (No.184), Shashank Shekhar Singh Rathore (No.185) and Jitesh Kumar Parmar (No.186), moved applications to become approver(s), which were allowed vide orders dated 02.04.2022/22.05.2023 passed by learned Predecessor(s), however no order to make said persons as witnesses was inadvertently passed while tendering pardon to said accused persons and accordingly their names are reflected in the array of accused. All the aforesaid persons appeared in person today. As per settled law, once an accused is granted pardon as per law, then such accused ceased to be an accused and becomes a witness of the prosecution/complainant and therefore in view of the fact that all these accused have already been granted pardon vide various orders passed by learned Predecessor(s), therefore complainant/SFIO is directed to include the names of these persons in the list of witnesses and accordingly these persons need not come present during further course of proceedings except on specific directions of the Court during the course of examination of the witnesses of the complainant.

Learned Senior Prosecutor has also pointed out that accused No. 160/Shiv Raj Sharma has also moved an application to become approver in this matter, which is pending adjudication and

CNR No: HRGR01-007022-2019

CIS No: COMA/5/2019

Serious Fraud Investigation Office Vs Adarsh Build Estate Ltd. & 186 others

-8-

statement of said accused in terms of Section 306 IPC is yet to be recorded. If said accused has moved an application to become approver, then complainant/SFIO is at liberty, if it deems so appropriate, to get statement of said accused recorded before learned Duty Magistrate on any working day by forwarding such application as per law and as and when such statement is recorded/put up before this Court, then further order as per law shall be passed on the pending application.

Date of order: 03.09.2024

naveen

Jagdeep Singh
ASJ/Gurugram
UID No.HR0125